

AbbVie Inc. v. Dr. Reddy's Laboratories, Inc. et al

Plaintiff:	AbbVie Inc.
Defendant:	Dr. Reddy's Laboratories Inc. and Dr. Reddy's Laboratories Ltd.
Case Number:	1:2026cv00705
Filed:	June 17, 2026
Court:	U.S. District Court for the District of Delaware
Presiding Judge:	Maryellen Noreika
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

[RSS Track this Docket](#)**Docket Report**

This docket was last retrieved on June 26, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
June 26, 2026	Filing 8 WAIVER OF SERVICE returned executed by AbbVie Inc.: For Dr. Reddy's Laboratories Ltd. waiver sent on 6/24/2026, answer due 9/22/2026. (Tigan, Jeremy)
June 26, 2026	Filing 7 WAIVER OF SERVICE returned executed by AbbVie Inc.: For Dr. Reddy's Laboratories Inc. waiver sent on 6/24/2026, answer due 9/22/2026. (Tigan, Jeremy)
June 24, 2026	Case Assigned to Judge Maryellen Noreika. Please include the initials of the Judge (MN) after the case number on all documents filed. (alb)
June 17, 2026	Filing 6 Summons Issued as to Dr. Reddy's Laboratories Ltd. on 6/17/2026; Dr. Reddy's Laboratories, Inc. on 6/17/2026. (Attachments: #1 Summons Issued)(mrr)
June 17, 2026	Filing 5 Disclosure Statement pursuant to Rule 7.1: No Parents or Affiliates Listed filed by AbbVie Inc. (mrr)
June	Filing 4 Report to the Commissioner of Patents and Trademarks for

Date Filed	Document Text
17, 2026	Patent/Trademark Number(s) 11,186,584 B2; 12,365,689 B2. (mrr)
June 17, 2026	Filing 3 Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 5/11/2026. Date of Expiration of Patent: 10/17/2036.Thirty Month Stay Deadline: No earlier than 11/11/2028. (mrr)
June 17, 2026	Filing 2 Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (mrr)
June 17, 2026	Filing 1 COMPLAINT with Jury Demand against Dr. Reddy's Laboratories Ltd. and Dr. Reddy's Laboratories, Inc. (Filing fee \$ 405, receipt number ADEDC-4994387) - filed by AbbVie Inc. (Attachments: #1 Exhibits A-B, #2 Civil Cover Sheet)(mrr)

. Executive Summary and Procedural Information

Parties & Counsel:
Plaintiff: AbbVie Inc. (Delaware)
Defendant: Dr. Reddy's Laboratories, Inc. (New Jersey) and Dr. Reddy's Laboratories Ltd. (India)
Plaintiff's Counsel: Morris, Nichols, Arsht & Tunnell LLP
Case Identification: 1:26-cv-00705 , D. Del., 06/17/2026
Venue Allegations: Plaintiff AbbVie Inc. ("AbbVie") alleges venue is proper because Defendant Dr. Reddy's Laboratories Ltd. ("DRL Ltd.") is an Indian corporation that may be sued in any judicial district. Venue over Defendant Dr. Reddy's Laboratories, Inc. ("DRL Inc.") is alleged to be proper as it is an agent or alter ego of DRL Ltd. and has litigated other patent disputes in the district.
Core Dispute: Plaintiff alleges that Defendants' submission of an Abbreviated New Drug Application (ANDA) for a generic version of RINVOQ® LQ infringes patents related to processes for preparing the active ingredient upadacitinib and its solid state forms.
Technical Context: The technology concerns processes for preparing upadacitinib, a Janus kinase (JAK) inhibitor used in oral solutions for treating pediatric psoriatic and juvenile idiopathic arthritis.
Key Procedural History: This is a Hatch-Waxman action initiated by AbbVie following receipt of a Paragraph IV certification notice letter from Defendants (collectively, "DRL") regarding DRL's ANDA No. 221506. The complaint notes that DRL's notice letter did not address the '689 Patent. AbbVie alleges it brought this action within 45 days of receiving the notice, triggering a 30-month stay on FDA approval of DRL's ANDA. The complaint also details a dispute over the terms of confidential access to DRL's ANDA file.

Case Timeline

Date	Event
2015-10-16	'584 Patent Priority Date
2016-06-20	'689 Patent Priority Date
2021-11-30	U.S. Patent No. 11,186,584 Issues
2025-07-22	U.S. Patent No. 12,365,689 Issues
2026-05-08	DRL sends Paragraph IV Notice Letter to AbbVie
2026-06-17	Complaint Filing Date
2031-04-26	RINVOQ® LQ orphan drug exclusivity expiration

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,186,584 - "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof"

Patent Identification: U.S. Patent No. 11,186,584, "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," issued November 30, 2021.

The Invention Explained

Problem Addressed: The patent's background section describes a need for solid-state forms of the active compound, upadacitinib ("Compound 1"), that possess acceptable properties for large-scale preparation and inclusion in pharmaceutical formulations, such as chemical and thermal stability, solubility, and hygroscopicity '584 Patent, col. 2:6-22 The patent also notes that previously known preparation processes involved hazardous reagents '584 Patent, col. 2:23-28

The Patented Solution: The patent discloses specific crystalline and amorphous solid-state forms of upadacitinib and its salts, along with processes to prepare them '584 Patent, abstract These forms and processes are designed to provide an acceptable balance of properties for manufacturing and formulation, avoiding the use of hazardous materials '584 Patent, col. 2:6-28 For example, FIG. 1A details a manufacturing process to produce an amorphous freebase form of the compound via a crystalline hydrate intermediate '584 Patent, FIG. 1A

Technical Importance: The development of stable, manufacturable solid forms of an active pharmaceutical ingredient is a critical step in creating reliable, safe, and effective oral dosage forms for commercial distribution '584 Patent, col. 2:10-22

Key Claims at a Glance

The complaint alleges infringement of "one or more claims" of the '584 Patent without specifying them **Compl. ¶45** As the accused product is an oral solution, the composition claims are particularly relevant.

Independent Claim 16:

- A pharmaceutical composition comprising Amorphous Freebase of Compound 1,
- or a pharmaceutically acceptable salt thereof,
- and a pharmaceutically acceptable carrier.

The complaint reserves the right to assert other claims **Compl. ¶45**

U.S. Patent No. 12,365,689 - "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof"

Patent Identification: U.S. Patent No. 12,365,689, "(3S,4R)-3-ethyl-4-(3H-imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," issued July 22, 2025.

The Invention Explained

Problem Addressed: The patent background notes the need for safe and effective treatments for pediatric patients with certain inflammatory diseases, for whom tablet formulations may be unsuitable **'689 Patent, col. 2:15-18** This creates a need for formulations, such as liquid solutions, that provide appropriate dosing and plasma exposure in children **'689 Patent, col. 2:25-33**

The Patented Solution: The patent discloses methods of treating juvenile idiopathic arthritis by administering upadacitinib according to specific weight-based dosing regimens, which may be delivered via a stable liquid pharmaceutical composition **'689 Patent, abstract** **'689 Patent, claim 4** The invention aims to provide pediatric patients with plasma exposures comparable to adult doses known to be efficacious **'689 Patent, col. 2:25-33** FIG. 14A shows plasma concentration curves for a low-dose regimen in children aged 6 to <12 years **'689 Patent, FIG. 14A**

Technical Importance: Establishing safe and effective weight-based dosing regimens for liquid formulations is essential for treating pediatric populations who cannot swallow solid pills, thereby expanding access to therapy **'689 Patent, col. 2:15-24**

Key Claims at a Glance

The complaint alleges infringement of "one or more claims" of the '689 Patent without specifying them **Compl. ¶67** Given the accused product is an oral solution for pediatric patients, method of treatment claims are particularly relevant.

Independent Claim 4:

- A method for treating polyarticular course juvenile idiopathic arthritis (pcJIA) in a pediatric patient,
- the method comprising administering a therapeutically effective amount of upadacitinib to the pediatric patient, wherein:
- if the pediatric patient has a body weight in a range from about 10 kg to less than about 20 kg, administering upadacitinib twice daily at a dose of 3 mg each (3 mg BID);

- if the pediatric patient has a body weight in a range from about 20 kg to less than about 30 kg, administering upadacitinib twice daily at a dose of 4 mg each (4 mg BID); and
- if the pediatric patient has a body weight of about 30 kg or greater, administering upadacitinib twice daily at a dose of 6 mg each (6 mg BID), or once daily at a dose of 15 mg (15 mg QD).

The complaint reserves the right to assert other claims **Compl. ¶67**

III. The Accused Instrumentality

Product Identification

The accused instrumentality is DRL's proposed generic version of AbbVie's RINVOQ® LQ 1 mg/mL oral solution, identified as "DRL's ANDA Product" and filed under ANDA No. 221506

Compl. ¶1 **Compl. ¶15**

Functionality and Market Context

The complaint alleges that DRL's ANDA Product is a 1 mg/mL oral solution containing the active ingredient upadacitinib **Compl. ¶1** **Compl. ¶3** It is intended for the treatment of pediatric patients with active psoriatic arthritis and polyarticular juvenile idiopathic arthritis **Compl. ¶12** AbbVie alleges that DRL intends to manufacture, market, and sell the product throughout the United States upon FDA approval, which would directly compete with and displace sales of AbbVie's branded RINVOQ® LQ product **Compl. ¶17** **Compl. ¶26**

IV. Analysis of Infringement Allegations

The complaint does not provide a claim chart or a detailed technical theory of infringement for either patent-in-suit. It makes conclusory allegations that DRL's submission of its ANDA constitutes an act of infringement under 35 U.S.C. § 271(e)(2)(A) and that future commercial activity would infringe under other subsections of § 271 **Compl. ¶¶46-48** **Compl. ¶¶68-70** No probative visual evidence provided in complaint.

□584 Patent Infringement Allegations

- The complaint does not provide sufficient detail for a claim chart analysis. The core of the dispute will depend on the physical and chemical properties of the upadacitinib active pharmaceutical ingredient (API) contained within DRL's ANDA Product.

□Identified Points of Contention:

- Scope Questions:** The primary dispute will likely concern whether the API in DRL's product falls within the scope of the asserted composition claims. For a claim to the "Amorphous Freebase" (e.g., Claim 16), a key question is whether DRL's API is, in fact, that specific solid-state form.

- Technical Questions:** The case will require factual evidence, likely obtained through discovery of DRL's ANDA, to characterize DRL's API using techniques such as Powder X-ray Diffraction (PXRD) or Differential Scanning Calorimetry (DSC), which are used in the '584 patent to define its claimed forms **'584 Patent, e.g., figs. 2A-3J** The central technical question is whether DRL's API exhibits the characteristics of a claimed solid form.

□689 Patent Infringement Allegations

□The complaint does not provide sufficient detail for a claim chart analysis. Infringement of the asserted method of treatment claims will depend on the intended uses described in the proposed label for DRL's ANDA Product.

Identified Points of Contention:

□**Scope Questions:** For a method claim like Claim 4, a central question is whether the term "administering a therapeutically effective amount" is limited to the exact weight-based dosing regimens recited in the claim, or if it could be construed more broadly.

□**Technical Questions:** The key infringement question is factual: Does DRL's proposed product label instruct or encourage physicians to prescribe the generic oral solution to pediatric pcJIA patients according to the specific weight-based dosing schedules outlined in Claim 4? If the label's instructions differ, the court may need to consider whether the differences are insubstantial for a potential finding of infringement under the doctrine of equivalents.

V. Key Claim Terms for Construction

584 Patent: "Amorphous Freebase of Compound 1"

□**The Term:** Amorphous Freebase of Compound 1 (from representative Claim 16)

□**Context and Importance:** The definition of this term is fundamental to the infringement analysis of the '584 patent. Practitioners may focus on this term because DRL could argue that its API is either a different, non-infringing polymorph or that it does not possess the specific characteristics required to be the claimed "Amorphous Freebase," thereby avoiding infringement.

□**Intrinsic Evidence for Interpretation:**

□**Evidence for a Broader Interpretation:** The specification provides a general definition of "amorphous" as a state that "lacks long range order at the molecular level" '584 Patent, col. 29:16-24 AbbVie may argue the term should be given this plain and ordinary meaning.

□**Evidence for a Narrower Interpretation:** The specification provides detailed characterization data for the amorphous form, including specific PXRD patterns (FIGS. 2A-2B), TGA thermograms (FIGS. 4A-4B), and a DSC thermogram showing a glass transition onset at about 119°C (FIG. 5A). DRL may argue that the term should be limited to an amorphous material exhibiting these specific physical properties.

689 Patent: "administering a therapeutically effective amount"

□**The Term:** administering a therapeutically effective amount (from representative Claim 4)

□**Context and Importance:** This term is critical because it is explicitly defined within the claim by specific weight-based dosing regimens. Practitioners may focus on this term because if DRL's proposed label recommends different dosing, it could form the basis of a non-infringement argument.

□**Intrinsic Evidence for Interpretation:**

□**Evidence for a Broader Interpretation:** The patent's abstract and summary broadly discuss providing "therapeutically effective" amounts of upadacitinib to pediatric patients to achieve "comparable plasma exposure" to adult doses '689 Patent, abstract '689 Patent, col. 2:25-33 This could support an argument that any dosing achieving such exposure is "therapeutically effective."

Evidence for a Narrower Interpretation: Claim 4 itself explicitly defines the "therapeutically effective amount" through a series of "wherein" clauses that tie specific doses (e.g., 3 mg BID, 4 mg BID) to specific patient weight categories **'689 Patent, claim 4** This provides strong intrinsic evidence that the term is limited to the specific regimens recited in the claim.

VI. Other Allegations

Indirect Infringement: The complaint alleges that DRL will actively induce and/or contribute to the infringement of both patents **Compl. ¶40** **Compl. ¶70** For the '689 patent, this allegation is based on the premise that DRL's proposed product label will instruct medical professionals and patients to use the ANDA Product in an infringing manner **Compl. ¶70**

Willful Infringement: The complaint does not use the term "willful infringement" but alleges that DRL has "actual and constructive notice" of the patents **Compl. ¶49** **Compl. ¶71** It further alleges that DRL's notice letter "lacks any sufficient contention" that the patents are invalid or not infringed, which it claims "renders this case 'exceptional'" under 35 U.S.C. § 285, entitling AbbVie to attorneys' fees **Compl. ¶51** **Compl. ¶73**

VII. Analyst's Conclusion: Key Questions for the Case

□ A primary factual question will be one of **API characterization**: What is the solid-state form of the upadacitinib in DRL's ANDA Product, and does it meet the structural and characteristic limitations of the composition claims of the '584 patent? This determination will likely require extensive expert analysis of discovery materials from DRL's ANDA.

□ A central legal and factual question for the '689 patent will be one of **label-based infringement**: Does the proposed product label for DRL's ANDA Product instruct or encourage administration to pediatric patients according to the specific, multi-tiered weight-based dosing regimens recited in the asserted method of treatment claims?

□ A key procedural question is the **adequacy of pre-suit conduct**: The court will need to address AbbVie's allegations regarding DRL's purportedly "unreasonable" offer of confidential access to its ANDA and the alleged deficiencies in its notice letter, which may influence early discovery motions and could factor into a later determination of whether the case is "exceptional."

submission of an Abbreviated New Drug Application (“ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to market a generic version of AbbVie’s pharmaceutical product RINVOQ® LQ 1 mg/mL oral solution (“DRL’s ANDA Product” or the “DRL ANDA Product”), prior to the expiration of United States Patent Nos. 11,186,584 (“the ’584 Patent”) and 12,365,689 (“the ’689 Patent”) (collectively, “the Patents-in-Suit”). RINVOQ® LQ 2. RINVOQ® LQ is a ground-breaking oral solution drug for treating pediatric patients two years of age and older with active psoriatic arthritis and patients two years of age and older with active polyarticular juvenile idiopathic arthritis. Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 2 of 18 PageID #: 2 3. Janus kinases (JAKs), including JAK1, JAK2, JAK3 and Tyrosine kinase 2 (Tyk2), are intracellular enzymes that play a pivotal role in signaling pathways arising from cytokine or growth factor-receptor interactions on the cellular membrane to influence cellular processes of hematopoiesis and immune cell function. Within the signaling pathway, JAKs phosphorylate and activate signal transducers and activators of transcription (STATs), which modulate intracellular activity including gene expression. RINVOQ® LQ’s active ingredient, upadacitinib, modulates the signaling pathway at the point of JAKs, preventing the phosphorylation and activation of STATs. Upadacitinib has surprising selectivity for JAK1. 4. AbbVie’s development of RINVOQ® LQ is part of its long legacy of research in immunology and its track record to making life better for patients with immune-mediated diseases. 5. RINVOQ® LQ is currently approved for treatment of (1) pediatric patients 2 years of age and older with active psoriatic arthritis who have had an inadequate response or intolerance to one or more TNF blockers, and (2) patients 2 years of age and older with active polyarticular juvenile idiopathic arthritis who have had an inadequate response or intolerance to one or more TNF blockers. 6. RINVOQ® LQ is an important addition to the treatment landscape for patients with these conditions and provides a treatment option for patients who do not respond well or are intolerant to other therapies. Indeed, RINVOQ® LQ was also the first oral therapy to receive FDA approval for pediatric patients with psoriatic arthritis. RINVOQ® LQ has also received orphan drug exclusivity through April 26, 2031 for treatment of pediatric patients 2 years of age and older with active polyarticular juvenile idiopathic arthritis who have had an inadequate response or intolerance to one or more tumor necrosis factor (TNF) blockers, and for the treatment of pediatric 2 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 3 of 18 PageID #: 3 patients 2 years of age and older with active psoriatic arthritis who have had an inadequate response or intolerance to one or more TNF blockers. 7. As a result of the inventive work of the AbbVie scientists responsible for its development, RINVOQ® LQ is available in a 1 mg/mL immediate-release twice daily oral solution, which allows for oral dosing to pediatric patients. THE PARTIES 8. Plaintiff AbbVie is a corporation organized and existing under the laws of the State of Delaware, with its corporate headquarters at 1 North Waukegan Road, North Chicago, Illinois 60064. AbbVie is a global research and development-based biopharmaceutical company committed to developing innovative therapies for some of the world’s most complex and critical conditions. AbbVie’s mission is to use its expertise, dedicated people, and unique approach to innovation to markedly improve treatments across therapeutic areas. 9. AbbVie is the assignee and owner of the Patents-in-Suit. 10. AbbVie holds NDA No. 218347 for RINVOQ® LQ. 11. On information and belief, Defendant Dr. Reddy’s Laboratories, Inc. is a corporation organized and existing under the laws of the State of New Jersey, having a principal place of business at 600 College Road East, 4th Floor, Princeton, NJ, 08540. 12. On information and belief, Defendant Dr. Reddy’s Laboratories Ltd. is a corporation organized and existing under the laws of India, having a principal place of business at 8-2-337, Road No. 3, Banjara Hills, Hyderabad, 500034, India. 13. On information and belief, Dr. Reddy’s Laboratories,

Inc. is a wholly-owned subsidiary of Dr. Reddy's Laboratories Ltd. 14. On information and belief, Dr. Reddy's Laboratories Ltd. and Dr. Reddy's Laboratories, Inc. collaborate with respect to the development, regulatory approval, marketing, 3 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 4 of 18 PageID #: 4 sale, and/or distribution of pharmaceutical products. On further information and belief, Dr. Reddy's Laboratories Ltd. and Dr. Reddy's Laboratories, Inc. are agents of one another and/or operate in concert as integrated parts of the same business group and enter into agreements with each other that are nearer than arm's length. 15. On information and belief, DRL caused ANDA No. 221506 ("DRL's ANDA") to be submitted to FDA and seeks FDA approval of DRL's ANDA. 16. On information and belief, Dr. Reddy's Laboratories Ltd. and Dr. Reddy's Laboratories, Inc. acted collaboratively in the preparation of DRL's ANDA and continue to act collaboratively in pursuing FDA approval of DRL's ANDA and seeking to market the DRL ANDA Product. 17. On information and belief, DRL intends to commercially manufacture, market, offer for sale, and sell the DRL ANDA Product throughout the United States, including in the State of Delaware, in the event FDA approves DRL's ANDA. 18. On information and belief, Dr. Reddy's Laboratories Ltd. and Dr. Reddy's Laboratories, Inc. rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of Delaware. On information and belief, Dr. Reddy's Laboratories Ltd. and Dr. Reddy's Laboratories, Inc. intend to act collaboratively to commercially manufacture, market, distribute, offer for sale, and/or sell DRL's ANDA Product, in the event FDA approves DRL's ANDA. JURISDICTION AND VENUE 19. This is a civil action for patent infringement arising under the patent laws of the United States, including 35 U.S.C. § 271 and 28 U.S.C. §§ 1338(a), 2201, and 2202. 20. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331 and 1338. 4 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 5 of 18 PageID #: 5 21. This Court has personal jurisdiction over Dr. Reddy's Laboratories, Inc. and Dr. Reddy's Laboratories Ltd. because, on information and belief, each, inter alia, has continuous and systematic contacts with the State of Delaware, regularly conducts business in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos, has purposefully availed itself of the privilege of doing business in the State of Delaware, and intends to sell DRL's ANDA Product in the State of Delaware upon approval of DRL's ANDA. 22. On information and belief, DRL is in the business of manufacturing, marketing, importing, distributing, and selling pharmaceutical drug products, including generic drug products, either directly or through subsidiaries, agents, and/or alter egos, which DRL manufactures, distributes, markets, and/or sells throughout the United States and in this judicial district. 23. On information and belief, DRL is licensed to sell generic and proprietary pharmaceutical products in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos. For example, on information and belief, Dr. Reddy's Laboratories, Inc. holds an active pharmacy wholesale license in the State of Delaware under License No. A4-0002524 and holds an active "Distributor/Manufacturer CSR" license in the State of Delaware under License No. DM-0013148. 24. DRL has committed, or aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to AbbVie, which manufactures and markets RINVOQ® LQ for sale and use throughout the United States, including in this judicial district. On information and belief and as indicated by a letter dated May 8, 2026 sent by DRL to AbbVie pursuant to 21 U.S.C. § 355(j)(2)(B), DRL prepared and filed its 5 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 6 of 18 PageID #: 6 ANDA with the intention of seeking to market DRL's ANDA Product nationwide, including within this judicial district. 25. On information and belief, DRL plans

to sell the DRL ANDA Product in the State of Delaware, list the DRL ANDA Product on the State of Delaware's prescription drug formulary, and seek Medicaid reimbursements for sales of the DRL ANDA Product in the State of Delaware, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos. 26. On information and belief, DRL knows and intends that the DRL ANDA Product will be distributed and sold in Delaware and will thereby displace sales of RINVOQ® LQ, causing injury to AbbVie. DRL intends to take advantage of its established channels of distribution in Delaware for the sale of the DRL ANDA Product. 27. Dr. Reddy's Laboratories, Inc. and Dr. Reddy's Laboratories Ltd. have regularly invoked the jurisdiction of the courts of this judicial district by pleading counterclaims in pharmaceutical patent infringement actions in this judicial district, and they have also not contested personal jurisdiction or venue in pharmaceutical patent litigation in this judicial district. See, e.g., Anacor Pharmaceuticals, Inc. et al., v. Dr. Reddy's Laboratories Ltd et. al, C.A. 21-1349, D.I. 11 (D. Del. Nov. 19, 2021); Horizon Therapeutics USA Inc. et al v. Dr. Reddy's Laboratories, Ltd. et al, C.A. 23-623, D.I. 12 (D. Del. July 14, 2023); Novartis Pharmaceuticals Corporation v. Dr. Reddy's Laboratories Inc. et al., C.A. 22-498, D.I. 12 (D. Del. May 10, 2022); see also, e.g., Bayer HealthCare Pharmaceuticals Inc. et al. v. Dr. Reddy's Laboratories, Ltd. et al., C.A. No. 25-1299, D.I. 14 (D. Del. Jan. 28, 2026); AbbVie Inc. et al. v. Dr. Reddy's Laboratories, Ltd., et al., C.A. No. 20-968, D.I. 14 (D. Del. Oct. 19, 2020). 28. Additionally, this Court has personal jurisdiction over Dr. Reddy's Laboratories Ltd. because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met as 6 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 7 of 18 PageID #: 7 (a) AbbVie's claims arise under federal law; (b) Dr. Reddy's Laboratories Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Dr. Reddy's Laboratories Ltd. has sufficient contacts in the United States as a whole, including, but not limited to, participating in the preparation and submission of DRL's ANDA and/or manufacturing and/or selling pharmaceutical products distributed throughout the United States including in this judicial district, such that this Court's exercise of jurisdiction over Dr. Reddy's Laboratories Ltd. satisfies due process. 29. Venue is proper in this district for Dr. Reddy's Laboratories Ltd. pursuant to 28 U.S.C. §§ 1391 and 1400(b) because, inter alia, Dr. Reddy's Laboratories is a corporation organized and existing under the laws of India and may be sued in any judicial district. 30. Venue is further proper against Dr. Reddy's Laboratories, Inc. as it is the agent or alter ego of Dr. Reddy's Laboratories Ltd. (which is also subject to venue in this Judicial District) in connection with the submission of DRL's ANDA. Moreover, Dr. Reddy's Laboratories, Inc. has litigated other Hatch-Waxman patent infringement disputes in this judicial district. THE PATENTS-IN-SUIT 31. The '584 Patent, entitled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H- imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide and solid state forms thereof," was duly and lawfully issued by the United States Patent and Trademark Office ("USPTO") on November 30, 2021. A true and correct copy of the '584 Patent is attached hereto as Exhibit A. The '584 Patent is listed in the Approved Drug Products with Therapeutic Equivalence Evaluations (an FDA publication commonly known as the "Orange Book") for RINVOQ® LQ 1mg/mL oral solution. 32. The '689 Patent, entitled "Processes for the Preparation of (3S,4R)-3-ethyl-4-(3H- imidazo[1,2-a]pyrrolo[2,3-e]-pyrazin-8-yl)-n-(2,2,2-trifluoroethyl)pyrrolidine-1-carboxamide 7 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 8 of 18 PageID #: 8 and solid state forms thereof," was duly and lawfully issued by the United States Patent and Trademark Office ("USPTO") on July 22, 2025. A true and correct copy of the '689 Patent is attached hereto as Exhibit B. The '689 Patent is listed in the Orange Book for RINVOQ® LQ 1mg/mL oral solution. DRL'S ANDA NO. 221506 33. DRL has submitted DRL's ANDA, which seeks approval to engage in the commercial manufacture, use,

sale, offer for sale, and/or importation into the United States of a purported generic version of RINVOQ® LQ 1 mg/mL oral solution prior to the expiration of, inter alia, the '584 and '689 Patents. 34. On information and belief, FDA has not approved DRL's ANDA. 35. DRL sent AbbVie a Notice Letter dated May 8, 2026 ("DRL's Notice Letter"). DRL's Notice Letter represented that DRL had submitted to FDA ANDA No. 221506 and purported Paragraph IV certifications with respect to the '584 Patent and United States Patent Nos. 9,951,080 (the '080 Patent); 10,981,923 (the "'923 Patent"); 11,661,425 (the "'425 Patent"); 11,680,069 (the "'069 Patent"); 11,718,627 (the "'627 Patent"); 11,773,105 (the "'105 Patent"); and 12,110,298 (the "'298 Patent"), which are all listed in the Orange Book for RINVOQ® LQ. DRL's Notice Letter did not address the '689 Patent and two other patents, United States Patents Nos. 8,926,629 and RE47,221, all of which are listed in the Orange Book for RINVOQ® LQ. 36. According to applicable regulations, Notice Letters such as DRL's must contain a detailed statement of the factual and legal basis for the applicant's opinion that the patent is invalid, unenforceable, or not infringed which includes a claim-by-claim analysis, describing "for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed" and "for each claim of a patent alleged to be invalid or unenforceable, a full and detailed explanation of the grounds supporting the allegation." See 21 C.F.R. § 314.95(c)(7); see 8 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 9 of 18 PageID #: 9 also 21 C.F.R. § 314.52. 37. In DRL's Notice Letter, DRL purported to offer confidential access to portions of its ANDA No. 221506 on terms and conditions set forth in DRL's Notice Letter ("the DRL Offer"). The DRL Offer contained unreasonable restrictions regarding access to its ANDA, well beyond those that would apply under a protective order. For example, the DRL Offer did not permit AbbVie's in-house counsel or scientific experts to access ANDA No. 221506. Additionally, the DRL Offer contained provisions that unreasonably restricted the ability of outside counsel receiving access to ANDA No. 221506 to engage in any work before or involving FDA relating to upadacitinib. The restrictions the DRL Offer placed on access to ANDA No. 221506 contravene 21 U.S.C. § 355(j)(5)(C)(i)(III), which states that an offer of confidential access "shall contain such restrictions as to persons entitled to access, and on the use and disposition of any information accessed, as would apply had a protective order been entered for the purpose of protecting trade secrets and other confidential business information" (emphasis added). 38. Outside counsel for AbbVie negotiated in good faith with counsel for DRL in an attempt to reach agreement on reasonable terms of confidential access to DRL's ANDA. In correspondence dated May 14, 2026—less than a week after AbbVie received DRL's Notice Letter—outside counsel for AbbVie proposed edits to the DRL Offer consistent with protective orders AbbVie and DRL have entered into in recent Hatch-Waxman litigation, and consistent with the purpose of 21 U.S.C. § 355(j)(5)(C)(i)(III). See, e.g., *AbbVie Inc. et al. v. Dr. Reddy's Laboratories, Ltd., et al.*, C.A. No. 20-968, D.I. 41 (D. Del. May 24, 2021). In that litigation, DRL allowed expert and in-house counsel access to its ANDA and permitted outside counsel receiving access to engage in FDA-related work. See *id.* 39. On May 22, 2026, having received no response from counsel for DRL, outside 9 Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 10 of 18 PageID #: 10 counsel for AbbVie requested an update, and counsel for DRL then responded with several questions about AbbVie's proposal but did not provide a counter-proposal. On May 26, outside counsel for AbbVie responded to DRL's questions and requested a counter-proposal. On June 4, counsel for DRL provided a counter-proposal that still excluded AbbVie in-house counsel access to DRL's ANDA. On June 5, outside counsel for AbbVie asked whether DRL would be open to in-house counsel access at all. On June 11, counsel for DRL responded that it would consider allowing in-house counsel access. On June 12, AbbVie sent back a revised draft offer of confidential access that, among other things,

reintroduced in-house counsel access. To date, AbbVie has not received access to DRL's ANDA. 40. On information and belief, if FDA approves DRL's ANDA, DRL will manufacture, offer for sale, or sell its ANDA Product, within the United States, including within the State of Delaware, or will import its ANDA Product into the United States, including the State of Delaware. On information and belief, the manufacture, use, offer for sale, sale, or importation of DRL's ANDA Product will directly infringe the '584 Patent and the '689 Patent, either literally or under the doctrine of equivalents, and DRL will actively induce and/or contribute to the infringement of the '584 Patent and/or the '689 Patent, either literally or under the doctrine of equivalents. 41. This action is being brought within forty-five days of AbbVie's receipt of DRL's Notice Letter. Accordingly, AbbVie is entitled to a stay of FDA approval pursuant to 21 U.S.C. § 355(j)(5)(B)(iii). COUNT 1 — INFRINGEMENT OF THE '584 PATENT BY DRL 42. AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein. 43. On information and belief, DRL has submitted or caused the submission of DRL's ANDA to FDA and thereby seeks FDA approval of DRL's ANDA Product

Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 11 of 18 PageID #: 11

44. AbbVie owns all rights, title, and interest in and to the '584 Patent.

45. On information and belief, DRL's ANDA Product and/or the use thereof infringes one or more claims of the '584 Patent.

46. On information and belief, DRL has infringed one or more claims of the '584 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting DRL's ANDA and thereby seeking FDA approval of a purported generic version of RINVOQ® LQ prior to the expiration of the '584 Patent.

47. On information and belief, if the DRL ANDA is approved, the DRL ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through DRL and its affiliates, directly infringing the '584 Patent.

48. On information and belief, importation, manufacture, sale, offer for sale, or use of DRL's ANDA Product by DRL or on its behalf prior to the expiration of the '584 Patent would infringe one or more claims of the '584 Patent under 35 U.S.C. § 271(a), (b), (c), and/or (g).

49. On information and belief, DRL has actual and constructive notice of the '584 Patent and is aware that the submission of DRL's ANDA with the request for FDA approval prior to the expiration of the '584 Patent would constitute an act of infringement of the '584 Patent.

50. On information and belief, AbbVie will be irreparably harmed if DRL is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '584 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and DRL, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

51. DRL's Notice Letter lacks any sufficient contention that the '584 Patent is invalid, unenforceable, and/or not infringed by DRL. Any assertion by DRL of invalidity, unenforceability, 11

Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 12 of 18 PageID #: 12

and/or non-infringement with respect to the '584 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 2 — DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '584 PATENT BY DRL

52. AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

53. AbbVie's claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

54. AbbVie owns all rights, title, and interest in and to the '584 Patent.

55. On information and belief, DRL's ANDA Product and/or the use thereof infringes one or more claims of the '584 Patent.

56. On information and belief, DRL has submitted or caused the submission of the DRL ANDA to FDA and continue to seek FDA approval of the DRL ANDA.

57. On information and belief, DRL has made, and will continue to make, substantial preparation to import into the United States, and/or to use, offer to sell, and/or sell within the United States the DRL ANDA Product.

58. On information and belief, if the DRL ANDA is approved, the DRL ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through DRL and its affiliates, directly infringing the '584 Patent.

59. On information and belief, DRL has actual and constructive notice of the '584 Patent and is aware that the manufacture, use, sale, and/or importation of the DRL ANDA Product prior to the expiration of the '584 Patent will constitute an act of infringement of the '584 Patent. 12

Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 13 of 18 PageID #: 13

60. Unless enjoined by this Court, on information and belief, importation, manufacture, sale, offer for sale, or use of DRL's ANDA Product by DRL or on its behalf prior to the expiration

of the '584 Patent would infringe one or more claims of the '584 Patent under 35 U.S.C. § 271(a), (b), (c), and/or (g).

61. As a result of the foregoing facts, there is a real, substantial and continuing justiciable controversy between for the parties hereto as to the infringement of the '584 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

62. On information and belief, AbbVie will be irreparably harmed if DRL is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '584 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and DRL, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

63. DRL's Notice Letter lacks any sufficient contention that the '584 Patent is invalid, unenforceable, and/or not infringed by DRL. Any assertion by DRL of invalidity, unenforceability, and/or non-infringement with respect to the '584 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 3 — INFRINGEMENT OF THE '689 PATENT BY DRL

64. AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

65. On information and belief, DRL has submitted or caused the submission of DRL's ANDA to FDA and thereby seeks FDA approval of DRL's ANDA Product.

66. AbbVie owns all rights, title, and interest in and to the '689 Patent.

13

Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 14 of 18 PageID #: 14

67. On information and belief, DRL's ANDA Product and/or the use thereof infringes one or more claims of the '689 Patent.

68. On information and belief, DRL has infringed one or more claims of the '689 Patent under 35 U.S.C. § 271(e)(2)(A) by submitting DRL's ANDA and thereby seeking FDA approval of a purported generic version of RINVOQ® LQ prior to the expiration of the '689 Patent.

69. On information and belief, if the DRL ANDA is approved, the DRL ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through DRL and its affiliates, and will then be used in

a way that is directly infringing the '689 Patent.

70. On information and belief, upon FDA approval of the DRL ANDA, DRL will actively induce and/or contribute to the infringement of one or more claims of the '689 Patent under 35 U.S.C. § 271(b) and/or (c) by actively and intentionally aiding, abetting, encouraging, participating in, and/or inducing others to perform acts of direct infringement with knowledge of the '689 Patent and knowledge that it is encouraging infringement.

71. On information and belief, DRL has actual and constructive notice of the '689 Patent and is aware that the submission of DRL's ANDA with the request for FDA approval prior to the expiration of the '689 Patent would constitute an act of infringement of the '689 Patent.

72. On information and belief, AbbVie will be irreparably harmed if DRL is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '689 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and DRL, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

14

Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 15 of 18 PageID #: 15

73. DRL's Notice Letter lacks any contention that the '689 Patent is invalid, unenforceable, and/or not infringed by DRL. Any assertion by DRL of invalidity, unenforceability, and/or non-infringement with respect to the '689 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

COUNT 4 — DECLARATORY JUDGMENT OF INFRINGEMENT OF THE '689 PATENT BY DRL

74. AbbVie restates, realleges, and incorporates by reference the foregoing paragraphs as if fully set forth herein.

75. AbbVie's claims also arise under the Declaratory Judgment Act, 28 U.S.C. §§ 2201 and 2202.

76. AbbVie owns all rights, title, and interest in and to the '689 Patent.

77. On information and belief, DRL's ANDA Product and/or the use thereof infringes one or more claims of the '689 Patent.

78. On information and belief, DRL has submitted or caused the submission of the DRL ANDA to FDA and continue to seek FDA approval of the DRL ANDA.

79. On information and belief, DRL has made, and will continue to make, substantial preparation to import into the United States, and/or to use, offer to sell, and/or sell within the United States the DRL ANDA Product.

80. On information and belief, if the DRL ANDA is approved, the DRL ANDA Product will be made, offered for sale, sold, imported, or otherwise distributed in the United States, including in the State of Delaware, by or through DRL and its affiliates, and will then be used in a way that is directly infringing the '689 Patent.

81. Unless enjoined by this Court, on information and belief, upon FDA approval of

15

Case 1:26-cv-00705-UNA Document 1 Filed 06/17/26 Page 16 of 18 PageID #: 16

the DRL ANDA, DRL will actively induce and/or contribute to the infringement of one or more claims of the '689 Patent under 35 U.S.C. § 271(b) and/or (c) by actively and intentionally aiding, abetting, encouraging, participating in, and/or inducing others to perform acts of direct infringement with knowledge of the '689 Patent and knowledge that it is encouraging infringement.

82. On information and belief, DRL has actual and constructive notice of the '689 Patent and is aware that the manufacture, use, sale, and/or importation of the DRL ANDA Product prior to the expiration of the '689 Patent will constitute an act of infringement of the '689 Patent.

83. As a result of the foregoing facts, there is a real, substantial and continuing justiciable controversy between for the parties hereto as to the infringement of the '689 Patent for which this Court may grant declaratory relief consistent with Article III of the United States Constitution.

84. On information and belief, AbbVie will be irreparably harmed if DRL is not enjoined from infringing and/or from actively inducing or contributing to the infringement of the '689 Patent. AbbVie does not have an adequate remedy at law, and considering the balance of hardships between AbbVie and DRL, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

85. DRL's Notice Letter lacks any contention that the '689 Patent is invalid, unenforceable, and/or not infringed by DRL. Any assertion by DRL of invalidity, unenforceability, and/or non-infringement with respect to the '689 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285 and entitles AbbVie to recovery of its attorneys' fees and such other relief as this Court deems proper.

REQUEST FOR RELIEF

WHEREFORE, AbbVie respectfully requests the following relief:

(A) A judgment that DRL has infringed the '584 and '689 Patents under 35 U.S.C.

§ 271(e)(2)(A);

(B) A declaratory judgment that under one or more of 35 U.S.C. §§ 271(a), (b), (c), and/or (g), DRL's commercial manufacture, use, offer for sale, or sale in, or importation into the United States of the DRL ANDA Product, or inducing or contributing to such conduct, would constitute infringement of one or more claims of the '584 and '689 Patents;

(C) A judgment and order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of any FDA approval of DRL's ANDA shall be no earlier than the last expiration date of any of the '584 and '689 Patents, or any later expiration of exclusivity for any of the '584 and '689 Patents, including any extensions or regulatory exclusivities;

(D) A judgment that making, using, selling, offering to sell, or importing DRL's accused ANDA Product, or inducing or contributing to such conduct, would constitute infringement of the '584 and '689 Patents pursuant to 35 U.S.C. §§ 271 (a), (b), (c), and/or (g);

(E) Entry of a permanent injunction enjoining DRL, its officers, agents, employees, parents, affiliates, and subsidiaries, and all persons and entities acting in concert with DRL or on its behalf from commercially manufacturing, using, offering for sale, or selling its accused ANDA Product within the United States, or importing its accused ANDA Product into the United States, until the day after the expiration of the '584 and '689 Patents, including any additional exclusivity period applicable to those patents, and from otherwise infringing the claims of the '584 and '689 Patents;

(F) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if DRL engages in the commercial manufacture, use, offer for sale, sale, and/or importation of its accused

17

ANDA Product, or any product that infringes the '584 and '689 Patents, or induces or contributes to such conduct, prior to the expiration of those patents including any additional exclusivity period applicable to those patents;

(G) A finding that this is an exceptional case, and an award of attorneys' fees in this

action pursuant to 35 U.S.C. § 285;

(H) An award to Plaintiffs of their costs and expenses in this action; and

(I)

Such other and further relief as the Court deems just and proper.

MORRIS, NICHOLS, ARSHT & TUNNELL LLP

/s/ Jeremy A. Tigan

OF COUNSEL:

Christopher N. Sipes

Erica N. Andersen

Nicholas L. Evoy

Alexander Trzeciak

Allyson C. Corigliano

COVINGTON & BURLING LLP

One CityCenter

850 Tenth Street NW

Washington, DC 20001-4956

(202) 662-6000

June 17, 2026

Jeremy A. Tigan (#5239)

Megan E. Dellinger (#5739)

1201 North Market Street

P.O. Box 1347

Wilmington, DE 19899

(302) 658-9200

jtigan@morrisnichols.com

mdellinger@morrisnichols.com

Attorneys for Plain